

SOFTWARE DISTRIBUTION AND SERVICES AGREEMENT

This Agreement is entered into between Alpha Software Pvt. Ltd. ("Licensor") and Beta Technologies Pvt. Ltd. ("Licensee"). The parties agree to the following terms.

1. TERM AND AUTOMATIC RENEWAL

The initial term of this Agreement shall commence on 1 January 2027 and continue for three years. Thereafter, this Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least ninety days before the end of the then-current term.

2. LICENSE GRANT

Licensor grants Licensee a non-exclusive, non-transferable license to use the Software solely for Licensee's internal business operations during the Term. Licensee shall not sublicense or transfer the Software except with Licensor's prior written consent.

3. MINIMUM PURCHASE COMMITMENT

Licensee agrees to purchase at least 10,000 Software licenses during each contract year. Any failure to meet the minimum purchase commitment shall constitute a material breach of this Agreement.

4. REVENUE AND PROFIT SHARING

Licensee shall pay Licensor five percent of Net Revenue attributable to the Software during each calendar quarter. Net Revenue shall be calculated from amounts actually received by Licensee from customers.

5. AUDIT RIGHTS

Licensor may, upon at least fifteen business days' written notice, audit Licensee's records solely to verify fees, usage, and compliance with this Agreement. Audits shall occur during normal business hours and no more than once in any twelve-month period unless a material discrepancy is identified.

6. LIMITATION OF LIABILITY

Except for liabilities that cannot lawfully be limited, neither party shall be liable for indirect, incidental, special, or consequential damages. The aggregate liability of Licensee for all claims arising from this Agreement shall be unlimited. Licensor's aggregate liability shall not exceed the fees paid during the preceding twelve months.

7. LIQUIDATED DAMAGES AND PENALTY

If Licensee breaches any material obligation under this Agreement, Licensee shall immediately pay Licensor liquidated damages of INR 5,000,000, regardless of the actual loss suffered by Licensor. The parties agree that this amount shall be payable automatically and shall not require proof of actual loss.

8. INDEMNITY

Licensee shall indemnify, defend, and hold harmless Licensor and its affiliates from all third-party claims, losses, damages, costs, and expenses arising from Licensee's breach of this Agreement, negligence, or violation of applicable law.

9. NON-COMPETE

During the Term and for five years following termination, Licensee shall not directly or indirectly engage in any business that competes with Licensor anywhere in India or in any other market in which Licensor conducts business.

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws applicable in the State of Maharashtra, India.

11. DISPUTE RESOLUTION

The parties shall attempt in good faith to resolve disputes through negotiation. Any dispute that is not resolved within thirty days may be referred to arbitration in Mumbai, Maharashtra, in accordance with applicable law.